



Notification Waiver Determination

American Industrial Partners – Avanos Medical

Acquisition	A-AV Holdco I, Inc, an affiliate of AIP, LLC (American Industrial Partners), applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Avanos Medical, Inc. (Avanos Medical), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 May 2026

Parties to the Acquisition	American Industrial Partners is a middle-market private equity firm based in New York, U.S, with a focus on acquisition and improvement of industrial businesses. The ADDMAN group (ADDMAN) is the only American Industrial Partners portfolio company which supplies products with applications in the medical technology sector in Australia. Avanos Medical is a US-headquartered medical device business focused on clinically differentiated solutions in two segments: Specialty Nutrition Systems and Pain Management & Recovery. Speciality nutrition systems includes a range of enteral feeding products and services designed to deliver nutrition into the patient's gastrointestinal tract and support care throughout the entire patient journey.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between American Industrial Partners (including its connected entities) and Avanos Medical in the supply of specialty nutrition systems or pain management and recovery products b. American Industrial Partners' portfolio company ADDMAN, a provider of medical manufacturing solutions, has a small presence in Australia c. there are alternative suppliers of speciality nutrition systems and pain management and recovery products in Australia.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
--	--

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**